

Community Guide to the Findings and Conditions

Separate review of the April 14 ZA NOD and July 1 CPC decision
ZCOA2026-0013 | ZA2026-0024 / ZBA2026-0001

Purpose and status key

This unofficial reader's guide summarizes already-filed appeal materials and the July 1 certified CPC hearing transcript. It does not amend the appeal, submit new evidence, or replace the official record.

Supported / no separate error identified: correct fact, definition, disclaimer, or enforceable requirement. **Partially supported:** evidence supports part but not all. **Mixed record / appeal issue:** supporting and unresolved evidence both exist. **Valid future condition; does not cure pre-approval evidence issue:** enforceable later safeguard, not itself evidence for a prior CUP finding. **Unsupported as stand-alone mitigation:** possible measure without a binding, measurable, enforceable restriction sufficient by itself.

Application-level traffic record

The original January 15 CUP application places the burden on the Applicant to prove that undue traffic congestion or hazards will not be created. Its written-statement form asks the Applicant to explain how that criterion will be met; the response says "See attached." The attached 11-page application materials provide general statements about working with authorities, adequate parking/traffic-flow plans, and coordinating prayer times, but they do not contain a separate project-specific explanation showing how undue traffic congestion or hazards will not be created. [This guide describes the submitted CUP application; it does not characterize this as a new appeal ground.]

The submitted CUP application contains no: Traffic Scoping Report; Traffic Impact Analysis; trip-generation analysis; existing traffic-count analysis; intersection or driveway-capacity analysis; queue analysis; traffic-engineer report; identified traffic mitigation plan; defined service-time restriction; or defined vehicle, visitor, or attendance cap. The application says expected traffic "will be significant."

I. ZA NOD — April 14, 2026

The ZA NOD contains 12 findings and 3 conditions. March 11 and April 8 transcripts are not available here, so this section relies on the NOD, original CUP application, and filed appeal materials.

ZA finding	Status	Why / appeal relevance
1. Church and incidental facilities	Mixed record / appeal issue	The appeal challenges original scope because record materials depict school/daycare and education uses; later CPC proceedings addressed school withdrawal but do not decide the ZA record.
2. Site adequate in size and shape	Mixed record / appeal issue	3.9 acres/no variance are facts; the appeal challenges whether that established access, parking, traffic, drainage, fire access, and full-project capacity.
3. Ingress/egress; no undue traffic hazards	Mixed record / appeal issue	The original CUP application required the Applicant to prove this criterion but supplied no project-specific traffic study, screening, or analysis. The NOD then anticipated later TIA/review.
4. No adverse neighborhood effect / character conflict	Mixed record / appeal issue	The appeal challenges reconciliation of scale, homes, traffic, drainage, lighting, noise, rural character, and plans.
5. Enumerated conditional use	Supported / no separate error identified	Correctly states the use is conditional; this does not establish separate CUP criteria.
6. Intended parking/landscaping/buffers/fencing	Mixed record / appeal issue	The appeal argues intentions are not proof of completed compliance or enforceable mitigation.
7. Friday service could be moved	Unsupported as stand-alone mitigation	No binding schedule, peak restriction, attendance/vehicle cap, or enforcement mechanism was adopted.
8. Opposition reported traffic concerns	Supported / no separate error identified	Accurate report of testimony; it does not resolve traffic.
9. Future TIA; possible improvements	Mixed record / appeal issue	The appeal challenges reliance on later review and the stated Friday peak-hour premise.
10. Conditions protect welfare	Mixed record / appeal issue	The appeal identifies unresolved traffic, drainage, emergency-access, lighting, noise, and operating-control questions.
11. Rural Area location	Location supported; compatibility appeal issue	Rural Area location is not disputed; compatibility with ABC/North Valley plans is.
12. Limited approval/no waiver	Supported / no separate error identified	Standard limitation/disclaimer.

ZA conditions

ZA condition	Status	Why / appeal relevance
1. Permits and submitted footprint	Supported / no separate error identified	Standard enforceable requirement; it does not independently decide traffic, drainage, emergency access, or compatibility.
2. Impervious-surface coordination	Valid future condition; does not cure pre-approval evidence issue	Specific later design guidance; appeal argues it does not demonstrate drainage/hydrology adequacy at CUP approval.
3. No outdoor amplified sound	Supported / no separate error identified	Enforceable outdoor-sound restriction; broader operating impacts remain separate.

II. CPC decision — July 1, 2026

The CPC review incorporates the certified July 1 transcript. It confirms real later safeguards but also unresolved traffic, scope, and site-specific questions when CPC acted.

CPC finding	Status	Why / record evidence
1. Church and incidental facilities	Mixed record / appeal issue	Staff said school had become separate CUP-level use; Applicant withdrew school/daycare; revised material accepted. Program/floor-area clarity remained. Transcript 82–85, 219–221.
2. CZO definition of church	Supported / no separate error identified	Ordinance definition; it does not independently establish all CUP criteria.
3. Site adequate in size and shape	Mixed record / appeal issue	Updated material showed about 43,000-SF ground-floor footprint with parking/landscaping. Staff called CUP material conceptual and sought clarity. Transcript 83–84, 218–221.
4. Ingress/egress; improvements may be required	Mixed record / appeal issue	Public Works described future TIA/mitigation; no project-specific TIA or quantified site trips existed when CPC acted. The original application contained no preliminary project-specific traffic analysis. Transcript 205–214.
5. Mixed uses; proposal adds to mix	Mixed record / appeal issue	Applicant described surroundings/buffers; transcript does not show complete ABC/North Valley policy analysis.
6. Enumerated conditional use	Supported / no separate error identified	Correct zoning observation; separate CUP criteria still apply.
7. Intended parking/buffers/fencing	Partially supported	Applicant described walls/buffer and updated material; final program/floor-area questions remained.
8. Friday service could be moved	Unsupported as stand-alone mitigation	Hours may be possible mitigation, but no fixed schedule, cap, or enforcement mechanism identified. Transcript 206, 210, 213–214.
9. Opposition traffic concerns	Supported / no separate error identified	Accurate report; Luna acknowledged regional Alameda congestion.
10. Opposition compatibility concern	Supported / no separate error identified	Accurate report of testimony.
11. TIA at building permit	Valid future condition; does not cure pre-approval evidence issue	TIA/mitigation/improvements required before permit/opening; no project-specific TIA existed when CPC acted. Transcript 205–214.
12. Roadway jurisdiction	Supported / no separate error identified	County, NMDOT, and City roles identified.
13. Conditions protect welfare	Mixed record / appeal issue	Some conditions existed, but traffic, fire review, and grading/drainage were later-stage matters; specificity remained disputed.
14. Rural Area	Location supported; compatibility appeal issue	Designation discussion occurred; no policy-by-policy ABC/North Valley analysis appears in cited discussion.
15. Limited to church use	Supported as limitation; scope addressed under Finding 1	Standard limitation; program clarity addressed above.

CPC conditions

CPC condition	Status	Why / record evidence
1. School not allowed	Partially supported; remaining scope/plan issue	Staff said school needed separate CUP treatment; Applicant withdrew it; supplemental material accepted. Remaining issue is final scope/floor-area specificity.
2. Permits and footprint	Supported / no separate error identified	Standard enforceable permit/footprint requirement.
3. 60,000-SF maximum / 43,000-SF footprint	Mixed record / appeal issue	Transcript supports about 43,000-SF footprint, not independent support for 60,000-SF cap or traffic basis for it.
4. Impervious-surface coordination	Valid future condition; does not cure pre-approval evidence issue	Staff said full grading/drainage plan occurs at building permit.
5. No amplified sound outside	Supported / no separate error identified	Staff explained restriction due to nearby residences; County noise ordinance applies.
6. Height limited to 26 feet	Supported / no separate error identified	Staff confirmed A-1 maximum 26 feet; Applicant said building would not exceed it.

CPC condition	Status	Why / record evidence
7. Parking under Section 21	Partially supported	Updated materials showed parking/layout; transcript does not independently test exact code compliance.
8. Landscaping / Water Conservation	Partially supported	Plan material referenced landscaping; exact code compliance not independently tested.
9. TIA at building permit	Valid future condition; does not cure pre-approval evidence issue	Public Works confirms safeguard but trips/impacts were not quantified at CPC decision.
10. NMDOT requirements	Supported in general	NMDOT identified as reviewing agency.
11. Six-foot wall/fence	Partially supported	Applicant described six-foot walls; final construction compliance not independently verified.
12. Light Pollution / Night Sky	Supported as code condition	Exact ordinance-compliance analysis not separately discussed.
13. Signage under Section 12 / O-1	Supported as code condition	No distinct hearing discussion located.
14. Grading/drainage plan at building permit	Valid future condition; does not cure pre-approval evidence issue	Full plan occurs at building permit.
15. Noise Ordinance compliance	Supported as code condition	County noise ordinance/outside-amplification restriction confirmed.

Conclusion

The County record includes real later-stage safeguards. It also shows that the original CUP application did not provide project-specific traffic analysis addressing the traffic criterion, and that a project-specific TIA, final drainage review, fire review, and aspects of final program/floor-area specificity remained incomplete when the CPC acted. This guide explains evidence already in the record; it does not amend the filed appeal.